
Art. 12 GDPR

Transparent information, communication and modalities for the exercise of the rights of the data subject

¹The controller shall take appropriate measures to provide any information referred to in [Articles 13 and 14](#) and any communication under [Articles 15 to 22](#) and [34](#) relating to processing to the data subject in a concise, transparent, intelligible and easily accessible form, using clear and plain language, in particular for any information addressed specifically to a child.

²The information shall be provided in writing, or by other means, including, where appropriate, by electronic means. ³When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means.

¹The controller shall facilitate the exercise of data subject rights under [Articles 15 to 22](#). ²In the cases referred to in [Article 11\(2\)](#), the controller shall not refuse to act on the request of the data subject for exercising his or her rights under [Articles 15 to 22](#), unless the controller demonstrates that it is not in a position to identify the data subject.

¹The controller shall provide information on action taken on a request under [Articles 15 to 22](#) to the data subject without undue delay and in any event within one month of receipt of the request. ²That period may be extended by two further months where necessary, taking into account the complexity and number of the requests. ³The controller shall inform the data subject of

any such extension within one month of receipt of the request, together with the reasons for the delay. ⁴Where the data subject makes the request by electronic form means, the information shall be provided by electronic means where possible, unless otherwise requested by the data subject. If the controller does not take action on the request of the data subject, the controller shall inform the data subject without delay and at the latest within one month of receipt of the request of the reasons for not taking action and on the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy.

¹Information provided under [Articles 13](#) and [14](#) and any communication and any actions taken under [Articles 15](#) to [22](#) and [34](#) shall be provided free of charge. ²Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character, the controller may either:

- charge a reasonable fee taking into account the administrative costs of providing the information or communication or taking the action requested; or
- refuse to act on the request.

³The controller shall bear the burden of demonstrating the manifestly unfounded or excessive character of the request.

Without prejudice to [Article 11](#), where the controller has reasonable doubts concerning the identity of the natural person making the request referred to in [Articles 15](#) to [21](#), the controller may request the provision of additional information necessary to confirm the identity of the data subject.

¹The information to be provided to data subjects pursuant to [Articles 13](#) and [14](#) may be provided in combination with standardised icons in order to give in an easily visible, intelligible and clearly legible manner a meaningful overview of the intended processing. ²Where the icons are presented electronically they shall be machine-readable.

The Commission shall be empowered to adopt delegated acts in accordance with [Article 92](#) for the purpose of determining the information to be presented by the icons and the procedures for providing standardised icons.

Suitable Recitals

(38) Special Protection of Children's Personal Data (58) The Principle of Transparency (59)
Procedures for the Exercise of the Rights of the Data Subjects (60) Information Obligation (73)
Restrictions of Rights and Principles